Dr S.P. Mookerjee: Whether any Government can exist or not is a matter completely irrelevant now.

Mr Chairman: The Whip does not bind anybody who does not belong to any party. They can take any course they like.

Dr S.P. Mookerjee: Good, and that they are doing.

The honourable Prime Minister stated in his speech that the three particular articles which are proposed to be changed by the amendments deal with vital matters concerning the welfare of the State as a whole. Let me take Article 19 in the first instance. The Prime Minister referred in detail to the freedom of the Press. Now I would like him to look at the article as it stands at present. He referred specially to two-pages or sheets-newspapers in this country which are responsible for the progressive deterioration of the moral standards of our younger folk, and he pointed out that what they are writing are immoral, untrue, vulgar, indecent, corroding. Now, what are the provisions that exist at present which authorize either Parliament or a State Legislature to pass laws for the purpose of curbing such a state of affairs? The exceptions which have been embodied in Article 19 state very clearly in clause (2):

> Nothing in sub-clause (a) of clause (1) shall affect the operation of any existing law in so far as it relates to, or prevent the State from making any law relating to, libel, slander, defamation, contempt of court or any matter which offends against decency or morality or which undermines the Security of, or tends to overthrow, the State.

Now, if there are newspapers which are guilty of these very serious acts of omission and commissions which the Prime Minister so graphically described, obviously the present Constitution arms Parliament and the State Legislatures with sufficient powers to deal with them.

Pandit Balkrishna Sharma (Uttar Pradesh): Ask the High Courts.

Dr S.P. Mookerjee: I shall ask the High courts.